

		The second cause of action additionally alleges, as follows: “BLITHE's acts described herein breach both the Non-Compete Covenant contained in the Purchase Agreement and the Employment Agreement, including but not limited to: “a. Taking steps to undermine, deter, and/or ultimately sabotage the potential acquisition of KMJ to a third party; “b. Neglecting his duties while employed by KMJ to instead focus on business opportunities he stole from KMJ for his own personal gain and benefit, costing KMJ money and client relationships; “c. Taking confidential and proprietary information of KMJ, including its Client Lists that do not constitute trade secrets and using such information in unfair competition against KMJ; and “d. Denigrating the reputation of KMJ to its clients through email, phone calls, and in person meetings.” (Verified Complaint, ¶ 36.) Defendant's motion acknowledges these allegations, but does not address them in the motion and show that they are entitled to judgment on the pleadings. (Motion, 2:20-25.) The allegations above allege a claim for breach of contract based on provisions in the Employment Agreement other than the non-solicitation/non-competition covenants. By failing to address these other alleged breaches, Defendant fails to establish judgment on the pleadings as to the entire second cause of action. Defendant's motion for judgment on the pleadings as to the second cause of action is DENIED. Defendant's request for judicial notice of Plaintiff's Verified Complaint is GRANTED. <i>Plaintiff to give notice.</i>
108	Dodson vs. Ford Motor Company, 23-01340987	Plaintiff HUGH DODSON will, and hereby does, move for an order to strike Defendants' memorandum of costs. Initially, the “prevailing party” is entitled as a matter of right to recover costs of suit in any action or proceeding. [CCP § 1032(b); <i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 606.]

To that end, “A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” [CRC, Rule 3.1700(a)(1).]

Here, on 3/2/2026 after taking the matter under submission, this Court granted Defendant Ford Motor Company and Santa Monica Ford Lincoln’s Motion for Summary Judgment. As such, Defendants Ford Motor Company and Santa Monica Ford Lincoln are the prevailing parties herein.

On 3/23/2026 Judgment was entered in favor of Defendant Ford Motor Company. Defendant Ford Motor Company was dismissed. (ROA 124)

For reasons unknown, the 3/23/2026 Judgment was not entered as to Defendant Santa Monica Ford Lincoln. The Motion for Summary Judgment was granted, which included the 5th cause of action for Negligent Repair.

Curiously, on 3/25/2026 Defendants filed a Statement of Compliance (ROA 131) stating, “On March 23, 2026, the Court entered judgement in favor of Defendant Ford Motor Company, thereby dismissing Ford from the action. The only remaining cause of action is the Negligent Repair Cause of action.”

Thereafter, on 4/7/2026 Defendants filed a Memo of Costs in the amount of \$3,996.61 (ROA 140). The costs were incurred by both Defendants.

Notably, in the case of *Boonyarit v. Payless Shoesource, Inc.* (2006) 145 Cal.App.4th 1188, 1192-1193, a costs award was reversed where no order or judgment of dismissal had been entered, and defendant failed to secure entry by filing a proposed judgment with a memorandum of costs and did not ensure that the court executed the judgment with the award.

In this instance, Judgment has been entered as to Defendant Ford Motor Company only. No Judgment or Dismissal has been entered as to Defendant Santa Monica Ford Lincoln. However, it appears both Defendants filed a joint Memorandum of Costs, which seeks costs incurred by both Defendants. Therefore, the Memorandum of Costs, as to Defendant Santa Monica Ford Lincoln appears to be premature.

Notwithstanding the above, on April 21, 2026, Plaintiff filed this Motion challenging Items 1, 4, 14, and 15 of the Memo of Costs. (ROA 148)

A memo of costs is facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. [*Ladas v. California State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774-776; *Bender v. County of Los Angeles* (2013) 217 Cal.App.4th 968, 989; *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266—mere statements in points and authorities and declaration of counsel insufficient to rebut prima facie showing]

On the other hand, items that are properly objected to are put in issue, and the burden of proof is on the party claiming them as costs. [*Ladas v. California State Auto. Ass'n, supra*, 19 Cal.App.4th at 774-776]

Item 1. Filing and motion fees

The memo of costs seeks \$1490 for filing and motion fees. Pursuant to CCP§1033.5(c)(1) filing and motion costs are allowable costs if incurred by the prevailing party. Plaintiff argues, with no support, that these costs are excessive. However, it is clear from the work-sheet attached to the memo of costs that the costs are for two Defendants' Answers, two motions, and a Motion for Summary Judgment/Adjudication. The costs are reasonable and supported.

Motion is DENIED as to Item 1.

Item 4: Deposition Costs

The Memo of Costs seeks \$1995.90 in deposition costs.

		Transcripts and video recordings of “necessary” depositions, fees of certified or registered interpreters for the depositions of parties or witnesses who do not proficiently understand or speak the English language, plus travel expenses to attend depositions, are allowable costs. [CCP § 1033.5(a)(3).] Plaintiff argues the deposition of Plaintiff Hugh Dodson only occurred from 10 am until 12:19 p.m., (Baker Decl. ¶ 6) and \$1,995.90 for the deposition is exorbitant. However, Plaintiff provides no indication as to how much transcripts and video recordings for this clearly necessary deposition of Plaintiff should have cost or would normally cost. Unhelpfully, Defendant simply argues, “Plaintiff’s firm should similarly be familiar with deposition costs as they have claimed the same amounts in deposition costs in several other cases with Ford’s Counsel.” (Opp. page 4-5.) Motion is DENIED as to Item 4. <i>Item 14: Fees for Electronic Filing or Service</i> The Memo of Costs seeks \$157.19 for fees for electronic filing or service. These costs are allowed pursuant to CCP§1033.5(a)(14). Plaintiff argues that the filing fees were sought elsewhere in the memo and that they are in excess of the Orange County Fee Schedule. Defendant fails to address these fees whatsoever in the Opposition. However, in the attachment to the Memo of Costs work-sheet, it is clear these are costs associated with electronically filing of six items at various costs. Clearly these are e-filing costs in addition to the standard court filing costs. Motion is DENIED as to Item 14. <i>Item 15: Other</i> Defendants request \$353.52 for Item, 15: Other.
--	--	---

		Plaintiff argues Defendant provides no receipts of invoices to indicate that this is the actual amount charged and/or spent. Defendant argues these were presented under the “Other” costs category because they are the “filing Fees” that are charged from First Legal, a legal service used to aid in the filing and service of documents necessary to litigate the case. In reviewing the attachment of the work-sheet, only filing fees for the Answer (\$37.75) and a Ex Pate Minute order (\$7.50) are identified. It is unclear what the two other invoices connected for \$195.22 and \$113.05, respectively, are for. As such, the Motion is GRANTED in the amount of \$308.27 as to Item 15. <i>Defendant Ford Motor Company to give notice.</i>
109	Rask vs. County of Orange, 25-01495933	<u>Motion to Stay Proceedings (ROA 62)</u> Defendants County of Orange (the “County”); Sheriff Don Barnes (“Sheriff Barnes”); Deputy N. Leland, Deputy Damasco, Deputy Belfield, Deputy E. Rodriguez, Deputy L. Vasquez, Deputy S. Vasquez, Sergeant Byrd, Deputy D. France, Deputy Z. Wainwright, Deputy G. Scannell, and Deputy L. Rhodes (collectively, “Deputy Defendants”), and Sergeant C. Strunk (“Officer Strunk”) seek an order staying this action during the pendency of criminal proceedings against Plaintiff Wayne Christopher Rask (“Plaintiff”). Government Code § 945.3 provides in part: “No person charged by indictment, information, complaint, or other accusatory pleading charging a criminal offense may bring a civil action for money or damages against a peace officer or the public entity employing a peace officer based upon conduct of the peace officer relating to the offense for which the accused is charged, including an act or omission in investigating or reporting the offense or arresting or detaining the accused, while the charges against the accused are pending before a superior court.” (Gov. Code, § 945.3.) “The purpose of the statute was ' 'to eliminate the use of civil damage complaints as plea bargaining levers' “ and